

SANHITA360

CHAPTER III

OF PUNISHMENTS

IPC Sections 53-75 and BNS Sections 4-13

Sentencing, commutation, fines and enhanced punishment

ACADEMIC NOTE

This material compares the Indian Penal Code, 1860 with the Bharatiya Nyaya Sanhita, 2023. It is educational material and not a substitute for the official statutes or legal advice.

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Purpose and Transition

Punishment is a consequence authorised by statute and imposed by a competent Court after conviction. Chapter III supplies general rules that operate with the punishment stated in each offence. The BNS substantially preserves these rules but consolidates them into Sections 4-13 and introduces community service.

A legally correct sentencing analysis begins with the particular offence, then checks the general punishment provisions, criminal procedure, constitutional protections and any special sentencing rule. Commutation is an executive substitution of one punishment for another; it must not be confused with a Court's original sentence, remission or release.

Transition rule: repealed IPC provisions concerning transportation, racial classifications and general forfeiture are historical only. They must not be presented as operative law.

Master IPC-to-BNS Map

IPC provision	BNS provision	Provision
Section 53	Section 4	Kinds of punishment; community service added.
Sections 54-55	Section 5	Commutation consolidated.
Section 57	Section 6	Fractions; life reckoned as twenty years for this limited purpose.
Section 60	Section 7	Rigorous and simple imprisonment.
Sections 63-70	Section 8	Fine and default-imprisonment rules consolidated.
Sections 71-75	Sections 9-13	Composite offences, uncertainty, solitary confinement and repeat offending.
Sections 53A, 55A, 56, 58-59, 61-62	No direct or operative counterpart	Transitional, separately governed or repealed provisions.

Section-by-Section Explanation

Every heading below expressly identifies the IPC section, followed immediately by the matching BNS provision or the correct statement that no operative counterpart exists.

Section 53 IPC: Punishments

Corresponding BNS provision: Section 4 BNS.

The IPC recognised death, imprisonment for life, rigorous or simple imprisonment, forfeiture of property and fine. BNS Section 4 retains these and expressly adds community service as a punishment.

Section 53A IPC: Construction of reference to transportation

Corresponding BNS provision: No direct operative BNS equivalent.

This transitional IPC provision converted historical references to transportation for life into imprisonment for life and removed references to transportation for shorter terms. The BNS does not reproduce the obsolete transportation framework.

Section 54 IPC: Commutation of sentence of death

Corresponding BNS provision: Section 5 BNS; see also Section 474 BNSS.

The appropriate Government may commute a death sentence without the offender's consent, subject to the current statutory commutation framework.

Section 55 IPC: Commutation of sentence of imprisonment for life

Corresponding BNS provision: Section 5 BNS; see also Section 474 BNSS.

The executive may commute imprisonment for life in accordance with the current law. BNS Section 5 consolidates commutation rather than repeating the former IPC formula.

Section 55A IPC: Appropriate Government

Corresponding BNS provision: No separately numbered BNS equivalent.

The IPC allocated authority between Central and State Governments. Under the new framework, governmental competence must be determined from BNS Section 5, BNSS Section 474 and the subject of the offence.

Section 56 IPC: Sentence of Europeans and Americans to penal servitude

Corresponding BNS provision: No BNS equivalent - repealed provision.

This racially discriminatory provision was repealed in 1949 and has no place in the BNS.

Section 57 IPC: Fractions of terms of punishment

Corresponding BNS provision: Section 6 BNS.

For calculating fractions of a term, imprisonment for life is reckoned as equivalent to twenty years. This deeming rule does not convert every life sentence into a fixed twenty-year sentence.

Section 58 IPC: Offenders sentenced to transportation

Corresponding BNS provision: No BNS equivalent - repealed provision.

This transportation provision was repealed in 1955 and is not reproduced.

Section 59 IPC: Transportation instead of imprisonment

Corresponding BNS provision: No BNS equivalent - repealed provision.

This provision was repealed in 1955 and has no operative counterpart.

Section 60 IPC: Imprisonment wholly or partly rigorous or simple

Corresponding BNS provision: Section 7 BNS.

Where an offence permits imprisonment of either description, the Court may order it to be wholly rigorous, wholly simple, or divided between the two.

Section 61 IPC: Sentence of forfeiture of property

Corresponding BNS provision: No BNS equivalent - repealed provision.

This provision was repealed in 1921. Modern forfeiture operates only where specifically authorised by current law.

Section 62 IPC: Forfeiture for specified offenders

Corresponding BNS provision: No BNS equivalent - repealed provision.

This provision was repealed in 1921 and is not reproduced in the BNS.

Section 63 IPC: Amount of fine

Corresponding BNS provision: Section 8(1) BNS.

Where no maximum fine is stated, the fine is unlimited but must not be excessive. Judicial proportionality remains essential.

Section 64 IPC: Imprisonment for non-payment of fine

Corresponding BNS provision: Section 8(2) BNS.

The Court may impose imprisonment in default of payment where the governing conditions are satisfied. Default imprisonment is additional to substantive imprisonment.

Section 65 IPC: Limit where imprisonment and fine are awardable

Corresponding BNS provision: Section 8(3) BNS.

Default imprisonment must not exceed one-fourth of the maximum term fixed for the offence where imprisonment and fine are both authorised.

Section 66 IPC: Description of imprisonment for non-payment

Corresponding BNS provision: Section 8(4) BNS.

Default imprisonment may be of a description that the Court could impose for the offence.

Section 67 IPC: Default where offence is punishable with fine only

Corresponding BNS provision: Section 8(5) BNS.

The BNS consolidates and updates the scale for offences punishable with fine or community service only. Default imprisonment must be simple and remains subject to statutory monetary limits.

Section 68 IPC: Imprisonment terminates on payment of fine

Corresponding BNS provision: Section 8(6) BNS.

Default imprisonment ends whenever the fine is paid or recovered by legal process.

Section 69 IPC: Termination on proportional payment

Corresponding BNS provision: Section 8(7) BNS.

Where a sufficient proportion of the fine is paid or recovered, default imprisonment terminates according to the statutory proportional calculation.

Section 70 IPC: Fine recoverable within six years; death does not discharge property

Corresponding BNS provision: Section 8(8) BNS.

An unpaid fine may be recovered within the statutory period, or during a longer term of imprisonment where applicable. Death does not release property that is legally liable for the offender's debts.

Section 71 IPC: Limit where offence is made up of several offences

Corresponding BNS provision: Section 9 BNS.

The rule prevents excessive multiple punishment where one offence is made up of punishable parts, falls within overlapping definitions, or arises from combined acts, unless the law expressly provides otherwise.

Section 72 IPC: Doubt as to which of several offences was committed

Corresponding BNS provision: Section 10 BNS.

Where judgment finds guilt of one among several specified offences but cannot determine which, punishment follows the offence carrying the lowest punishment unless all carry the same punishment.

Section 73 IPC: Solitary confinement

Corresponding BNS provision: Section 11 BNS.

Where rigorous imprisonment may be imposed, the Court may order solitary confinement within the statutory total ceiling: up to one, two or three months depending on the sentence length.

Section 74 IPC: Limit of solitary confinement

Corresponding BNS provision: Section 12 BNS.

Solitary confinement cannot exceed fourteen days at one time, with intervals of at least equal duration. For imprisonment exceeding three months, it cannot exceed seven days in any one month.

Section 75 IPC: Enhanced punishment after previous conviction

Corresponding BNS provision: Section 13 BNS.

A qualifying previous conviction for specified coin, Government-stamp or property offences may expose the offender to enhanced punishment for a later qualifying offence, subject to proof of the former conviction and statutory conditions.

Punishments Under Section 4 BNS

- Death.
- Imprisonment for life.
- Imprisonment of two descriptions: rigorous imprisonment with hard labour and simple imprisonment.
- Forfeiture of property where the law authorises it.
- Fine.
- Community service - a new express addition to the general list of punishments.

Community service is not an informal warning. It is a statutory punishment imposed where the relevant BNS offence authorises it, and it must be administered through the applicable procedural framework.

Commutation and Life Imprisonment

Commutation substitutes a legally permitted punishment for the punishment imposed. BNS Section 5 operates with BNSS Section 474. The prisoner's consent is not the basis of the statutory power. The appropriate governmental authority depends on the governing law and subject matter.

The twenty-year figure in BNS Section 6 is a calculating device for fractions of punishment. It does not create a universal right to release after twenty years, nor does it erase minimum-imprisonment restrictions or the rules governing remission and commutation.

Exam distinction: sentence is imposed by the Court; commutation substitutes punishment through statutory executive power; remission reduces the period without changing the character of the sentence.

Fine and Default Imprisonment

- A fine with no stated maximum remains subject to the rule that it must not be excessive.
- Default imprisonment is a coercive consequence of non-payment and is distinct from substantive imprisonment for the offence.
- Where imprisonment and fine are both authorised, the statutory one-fourth ceiling applies to default imprisonment.
- Payment or lawful recovery ends default imprisonment; proportional satisfaction may produce proportional release.
- The BNS expressly accommodates community-service-only offences within the consolidated default framework.
- Recovery after death is limited to property legally liable for the offender's debts.

Multiple Offences, Solitary Confinement and Recidivism

BNS Section 9 prevents multiplication of punishment merely because one criminal transaction can be divided into punishable parts or placed within overlapping definitions. A separate injury or legally distinct act may still attract a separate punishment.

Sections 11 and 12 BNS preserve the strict ceilings on solitary confinement. A sentencing order must satisfy the total maximum and the execution intervals. Constitutional dignity and binding prison jurisprudence remain relevant.

BNS Section 13 applies only after proof of a qualifying former conviction and a later qualifying offence. Previous conviction is not a general licence to exceed the punishment authorised by law.

Problem-Solving Method

- Identify the date of the offence and select IPC or BNS.
- Locate the punishment stated in the substantive offence.
- Check whether the Court has a choice between fine, imprisonment, community service or another authorised punishment.
- If a fine is imposed, calculate default imprisonment separately under the governing clauses.
- If several offences or components overlap, apply Section 71 IPC or Section 9 BNS before adding punishments.
- If solitary confinement is considered, apply both the sentencing ceiling and execution limits.
- For enhanced punishment, prove the qualifying previous conviction and every statutory condition.
- Keep sentence, commutation, remission and parole conceptually separate.

Revision Summary

- Section 53 IPC -> Section 4 BNS; community service added.
- Sections 54-55 IPC -> Section 5 BNS; read with Section 474 BNSS.
- Section 57 IPC -> Section 6 BNS; twenty years only for fractions.
- Section 60 IPC -> Section 7 BNS.
- Sections 63-70 IPC -> Section 8 BNS.
- Sections 71-75 IPC -> Sections 9-13 BNS.
- Repealed Sections 56, 58, 59, 61 and 62 have no operative BNS equivalent.
- Default imprisonment ends on payment or lawful proportional satisfaction of the fine.
- Solitary confinement is subject to strict total and interval limits.

Official Reading and Disclaimer

[Bharatiya Nyaya Sanhita, 2023 - Ministry of Home Affairs text](#)

[Indian Penal Code, 1860 - India Code text](#)

Always check the current statutory text, applicable criminal procedure and binding judicial decisions. This material is for legal education and does not provide legal advice.